

Development Office

STAFF REPORT

Snyder Plaza

Summation

Preliminary Plat Process

CASE NUMBER(s): UDC-13-00265

FILE CODE: SNYD-PFD

PREPARED BY: Brett Walker

MEETING August 5, 2013 – Planning Commission
DATES: August 26, 2013 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Preliminary Plat Map
- Complete Application
- Open Space and Trans. Network Waiver
- Preliminary Drainage Analysis
- Traffic Impact Study
- Environmental Impact Assessment

RECOMMENDATION: The Planning and Development office recommends approval of the Preliminary Plat, with the following conditions:

1. Finalize circulation and lot type and design with the Final Plat.

STAFF REPORT UPDATE (8/6/2013): At its regular meeting Monday, August 5, 2013, the City of Cheyenne Planning Commission recommended approval of the above described Preliminary Plat, with staff condition 1, by a vote of 3 to 0.

STAFF REPORT

Snyder Plaza

Preliminary Plat Process

CASE NUMBER(s): UDC-13-00265

FILE CODE: SNYD-PFZ

PREPARED BY: Brett Walker

MEETING DATES: August 5, 2013 – Planning Commission
August 12, 2013 – City Council

OWNER: AYA Homes, LLC 770-364-4177
7009 Cordova Drive
Cheyenne, WY 82009

AGENT: Brad Emmons 307-637-6017
A.V.I., P.C.
1103 Old Town Lane, Ste. 101
Cheyenne, Wyoming 82009

PROJECT: Mixed-Use development

WORK DESCRIPTIONS: Preliminary Plat in conjunction with Zone Change for multi-use project

LOCATION:

1. Legal Description: a replat of a portion of Blocks 80 and 81, formerly known as Interior Heights Addition, now vacated, being a portion of the NE¼ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming
2. Location: East of and adjacent to Snyder Avenue, north of W. Allison Road
3. Address: Vacant

SIZE: Total site: 2.9 acres

CURRENT ZONING: A-1 Agricultural and Rural Residential District

PROPOSED ZONING: MUR Mixed Use with Residential Emphasis District

EXISTING LAND USE: Vacant

Expedited Plat/UDC-13-00265/SNYD-PFZ

PROPOSED LAND USE: Mixed Use

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Greenway/WAPA	A-1	City
South	Apartments	HR-2	City
East	Single-Family	MR-2	City
West	Johnson Jr. High	P	City

EXPEDITED REVIEW: This plat was originally pursued as an expedited application. An expedited review process is a concurrent preliminary and final plat. A project may be eligible for an expedited review when the proposal contains no significant planning, design and engineering issues. At this time, staff does not recommend an expedited review, as a few issues remain, as outlined below.

EXECUTIVE SUMMARY: This 3 acre project proposes 2 mixed-use building lots, 9 4-plex lots, and a single, commonly-owned lot intended to provide access, parking, and landscaping on the site. The WAPA transmission lines and Greenway buffer this site from the residential neighborhood to the north, presenting substantial physical impediments for any practical development. The mixed-use buildings would front along Snyder. The Preliminary Plat has been submitted in conjunction with a Zone Change request from A1 to MUR. A zone change from A1 is a prerequisite to any development as it is a County zone district. PlanCheyenne does not contemplate any future land uses with A1 as an underlying zone district, and the UDC does not provide regulations for A1 as it is not designated in the development code. In general, the proposal is consistent with PlanCheyenne. However, design requirements related primarily to the residential portion needs to be finalized before the Final Plat is presented. These include on-site circulation and appropriate lot type for the 4-plexes, including the precise size and setback requirements. Thus, staff recommends acknowledgement of the Preliminary Plat, with the condition that those requirements be satisfied, as stated previously on the Summary page.

PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following criteria:

PLANHEYENNE. *The application is in accordance with the development policies and physical patterns identified in the PlanCheyenne.*

PlanCheyenne recommends a Future Land Use Category of Urban Residential for this area. The Urban Residential category allows for a broader variety of residential types, including single-family residences,

duplexes, patio homes, townhomes, condominiums and apartment. Supporting and complementary uses, including open space and recreation, schools, places of worship and other public or civic uses are encouraged. This project proposes, apartments and townhomes, which contribute to a mix of housing types, another important principle outlined in the comprehensive plan.

For multiple family residential (e.g., townhomes and apartments), vehicular, bicycle, and transit routes should be accessible, yet residential areas should be protected from heavy traffic. In addition, these types of residential developments should be within convenient proximity to neighborhood retail centers as well as open space and parks.

Policy 1.3.b: Variety of Housing in Neighborhoods

The community will encourage the incorporation of a mixture of housing types with varied price ranges and densities to attempt to meet the needs of all segments of the community.

Policy 1.4.a: Infill Opportunities

The community will support infill in existing neighborhoods, but ensure that infill is compatible with neighborhoods and districts through design standards (e.g., to address scale, height, and character of infill as it relates to existing development).

Policy 2.3.a: Mix of Housing Types

The community will strongly encourage using a variety of housing types and models, sizes, and price ranges in new neighborhoods to provide expanded housing options. Incorporating a mix of housing types at both the neighborhood scale and the block scale helps create varied and interesting streetscapes and a diverse community.

Policy 2.3.b: Higher Density Housing

Higher density and senior housing should typically be located near activity centers and transportation corridors (arterial and collector streets) to provide for convenient access, and should include common areas such as courtyards, playgrounds, or open space.

Policy 2.7.a: Residential Development Quality

PlanCheyenne encourages our community to “raise the bar” on the quality of residential development, leading to stable residential neighborhoods that retain their quality over time. New neighborhoods should be varied in design, through standards and regulations that include consideration of such criteria as a variety of lot sizes, building styles and colors, orientation of buildings and garages, roof pitches, neighborhood streets, quality materials, and other unique architectural features on homes to create variety and aesthetic interest.

Policy 4.3.b: Neighborhood Design to Support Walking and Bicycling

New neighborhoods should contain a mix of compatible uses so that residents have recreation, employment and shopping opportunities within walking or bicycling distance of their homes.

Policy 7.2.e: Maximized Infrastructure Investments.

The community will contain urban development within the Urban Service Boundary to maximize our efficient and economic use of infrastructure investments (both public and private).

PLANNING. *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

This infill project proposes no new right of way, and will incorporate a private drive system for access. This development could potentially take advantage of the Greenway. The project has access to existing water and sewer in Snyder Avenue.

STANDARDS. *Division of land meets the purposes, intent, and all applicable standards in Article 4.*

Community Facility Fees

Park Fees:

As outlined in Section 4.2.5.c.2&3 and Table 4-1, UDC, Park fees are calculated as follows:

Total Plat Area: 2.9 acres

(less) ROW Area: 0

(equals) Park Fee Subject Area: 2.9 acres

Total Proposed Commercial Area: 0.6 acres

Land Acquisition Fee = \$350 x 2.9 or \$1,015

Infrastructure Fee = \$350 x 2.9 or \$1,015

Total = \$2,030 payable in full at the time of the signing of the final plat.

Additionally, The Residential Enhancement Fee of \$400 per Dwelling Unit (DU) is payable at the issuance of a building permit. Under the current proposal the Commercial Enhancement Fee would be calculated at the time of building permit.

No new Right-of-Way is being proposed with this application. Access will be provided by means of an easement in order to construct a private access road that will resemble the Neighborhood Street Design described in section 4.3.4, UDC (page 4-25). This private access road will not be constructed, maintained, repaired, or replaced by the City. Parking requirements (Section 6.2, UDC) will be further evaluated at the time of Site Plan or Plot Plan Review.

The Open Space requirement is exempt per 4.4.2.b.1, UDC, due to the adjacent Greenway to the north, as well as Johnson Junior High Schools open fields to the west.

PHASING. *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of*

the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.

No phasing is proposed. However, should the residential portion be constructed first, appropriate improvements to serve that component will be required.

STUDIES. *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

Traffic and Drainage studies were submitted and evaluated by the Engineering Staff. Staff had no comments on the Preliminary Drainage, and the majority of the Traffic issues will be addressed at the time of Site Plan Review (see department comments below). However, it is important to assure that any proposed circulation will have adequate area in which to be designed and constructed to meet specifications.

ZONING. *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

The proposed MUR zone district directs the project to the applicable lot types and design requirements. While this Preliminary Plat begins to address the general layout as to how it will satisfy those requirements, there are still some deficiencies as reflected in the condition attached to Staff's recommendation. These details should be able to be resolved and will be required to be completed at the time of Final Plat. The developer proposes that the primary parking/circulation lot be held in common ownership, and an owner's association to ensure maintenance.

SURROUNDING DEVELOPMENT. *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

This parcel is surrounded by completely developed or reserved land, and the proposal does not propose a higher density of residential than what already exists adjacent to the south. The commercial component is unlikely to attract high-volume service or retail businesses, due to its location on a less heavily travelled collector street.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

Board of Public Utilities: Linda Gunter

The BOPU is requiring that a utility easement be shown on lots 1,9 and 11 on the Final Plat.

Engineering Department: Jack Studley ***NOTE:*** *All items corrected on revised preliminary plat map submitted 7/30/2103, and this application is no longer being processed as an expedited review.*

1. Boundary data appears in order for mathematical closure.
2. City Code 1.12.020, paragraph C.1-3 requires the provision of City Ground Datum Coordinates for the two City Control Stations and the two corners of one boundary course. This final plat provides their modified State Plane Coordinates. The City Ground Datum Coordinates must be provided in some manner or form on the plat, and be properly identified.
3. Was it intended to have CP3 "INTERSTATE" provided in the LEGEND?
4. The curve data in the LEGAL DESCRIPTION is not fully provided. This is required to be corrected.

Laramie County Assessor: Clarice Blanton

Is Lot 1 proposed to be Common Area? How will ownership be held? Are the remaining lots to be residential? ***NOTE:*** *this application is no longer being processed as an expedited review. The Final plat will be required to have this issue resolved and indicated on the map.*

Development: Brandon Cammarata

The waiver for open space is recommended based on the following criteria: (1) the entire site is located within the 1000' service area of the existing Greenway, so long as site development encourages direct access to the facilities (Table 4-16 and 4.4.2b 1 and 2). (2) In addition, the site is across the street from the Johnson Junior High fields which will provide open space amenity to this development.

General concurrence with the evaluation in the the Environment Impact Assessment Letter (EIS)

Engineering Department: Mark Escobedo ***NOTE:*** *A revised traffic study will be required with the Final Plat, as well as those issues dealing with providing adequate circulation. Several other design-related comments will be addressed at time of Site Plan Review.*

1. A Transportation Impact Study (TIS) is required (ref. Article 3, section 3.1.1.c., UDC) as the proposed development peak-hour trip generation in the A.M. Peak is 145 and the daily vehicle trips is 1,436, which exceed the threshold volumes of 50 peak-hour trips and 500 daily vehicle trip ends, respectively. We have received and reviewed a TIS dated July, 2013, prepared by Anthony J. Schepp, P.E. and offer the following comments:

- a. The proposed project includes 16 residential units above the two commercial buildings, 7 townhouses, and four 4-plexes. It does not appear that the trip generation for the 4 4-plexes has been included in the trip generation. Review and revise all calculations and analysis accordingly.
- b. The TIS was evaluated based on 7 townhouses. A revised site plan substituted five 4-plexes for the seven townhouses was provided after the Traffic Impact Study was submitted. An addendum to the TIS will be required should the site plan be modified.

GIS/Engineering/Addressing: Gary Stogsdill

All coordinates are incorrect. **NOTE:** *Corrected on revised map submitted on 7/30/13.*

LCSD #1: Chris Hout

This development site falls within the South Triad -- student's home attendance boundaries are South High School, Johnson Junior High School and Goins Elementary School. The current attendance for these schools are as follows:

Goins Elementary - at or above capacity with little to no space available in all grades.

Johnson Junior High - below capacity with space available in both grades.

South High -- below capacity with space available in all grades.

Land Records Technician: Harry Osborn

The description in the dedication could benefit from the addition of the long chord bearing/distance and the removal of the string of 'X's. **NOTE:** *Corrected on revised map submitted on 7/30/13.*

Metro Planning Office (MPO): Nancy Olson **NOTE:** *All comments to be addressed with revised Traffic Study required with submittal of the Final Plat.*

The Traffic Impact Study should be updated to reflect the final configuration of housing units planned for Snyder Plaza. The study currently assumes 23 townhouses will be included in the development, yielding 133 weekday trips. However, if nine fourplexes are constructed instead of the townhouses, as depicted in the Conceptual Plan dated 7-10-13, residential trip generation could be as high as 239 trips (a net gain of 106 weekday trips).

Likewise, when the site's commercial/retail uses are planned with more certainty, the Traffic Impact Study will also need to be updated to reflect the potential for higher trip generation rates (e.g. from a fast casual restaurant or coffee shop).

Please be sure to carefully review parking, driveway throat depth, drive aisle dimensions, and other requirements before submitting a final site plan. These requirements may limit the type of

commercial or retail that will be feasible in the space allotted. Snyder is a classified collector and driveway spacing requirements will also need to be followed.

Parks and Recreation Admin: Teresa Moore

1. Describe the use of the 5' access easement. **NOTE:** *Easement no longer proposed. Corrected on revised map submitted on 7/30/13.*

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS: Engineering-Drainage, Engineering General, Fire Department, Optimum (formerly Bresnan), Environmental Health

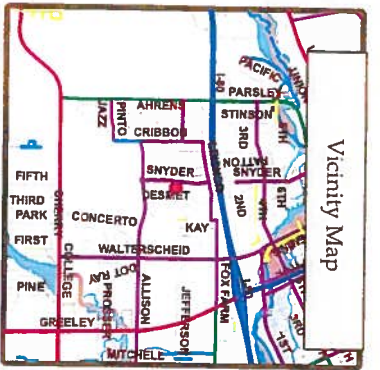
AGENCIES AND REVIEWERS NOT RESPONDING: Laramie County Dispatch, Emergency Management Agency, CenturyLink (formerly Qwest), Cheyenne Light, Fuel & Power, Engineering Department, Laramie County Clerk, DEQ, DOE/WAPA, High West Energy, Phillips Pipeline, Police Department, Sanitation, Transit, Urban Planning

OTHER COMMENTS RECEIVED: None

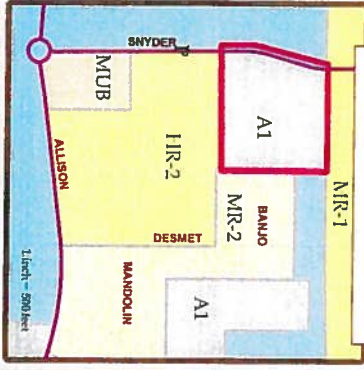
Encl: Preliminary Plat Map
Aerial Map

cc: Owner
Agent/Applicant
File

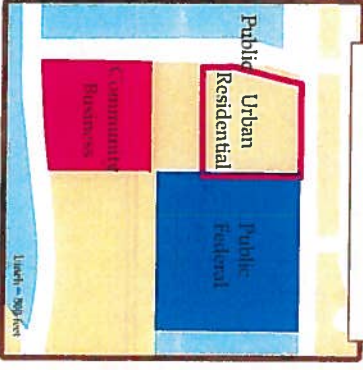
Vicinity Map



Zoning Districts



Future Land Use Plan



SNYDER PLAZA

A replat of a portion of Blocks 80 and 81, formerly known as Interior Heights Addition, now vacated, being a portion of the NE¹/₄ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming.

Preliminary Plat:
UDC-13-00265

Zone Change:
UDC-13-00266

A Preliminary Plat submitted in conjunction with a Zone Change Request from A-1 Agriculture and Rural Residential to MUR Mixed-Use with Res. Emphasis

This Zone Change enables development to occur on the lot. If the site was to remain A1, the options for development would be extremely limited. In fact, the UDC does not recognize the A1 designation, and the previous development code considered it "for use in the County only". The A1 designation is a remnant that has been whittled away as development has occurred in the area over the last 20 years. This includes South High School and Lexington Apartments to the south, and the rest of the Harmony Point Subdivision to the East.



Overlook - Looking East from Snyder



Mid-Block - Looking East from Snyder



Southern Edge - Looking East from Snyder (note slope)

This map is made possible through the Cheyenne and Larimer County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS makes its servers and geospatial immutability in allowing access to our use of this data.



1 in = 300 ft

- Road Classification**
- Interstate
 - Principal Arterial
 - Minor Arterial
 - Collector
 - Local
 - Platted Not Built
 - Private



- Legend**
- Sanitary Sewer Mains
 - Water Mains
 - Ownership
 - Platted Info



1 in = 600 ft

